

# Jxxx vs The District Registrar on 8 October, 2025

**Author: G.R.Swaminathan**

**Bench: G.R.Swaminathan**

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED : 08.10.2025

CORAM

THE HONOURABLE MR.JUSTICE G.R.SWAMINATHAN

W.P(MD)No.25532 of 2025  
and  
W.M.P.(MD)No.19996 of 2025

Jxxx

Vs.

1.The District Registrar,  
Dindigul, Dindigul District.

2.The Sub Registrar,  
Joint - I Sub - Registrar Office,  
Dindigul District.

3.Kxxx

4.The Inspector of Police,  
Cyber Crime Wing Criminal Branch,  
Madurai City, Madurai.

(R4 is suo motu impleaded vide order  
dated 18.09.2025 in W.P.(MD)No.25532 of  
2025 by GRSJ)

Prayer : Writ Petition filed under Article 226 of the Constitution  
praying this Court to issue a Writ of Certiorari, to call for the r  
pertaining to the impugned marriag  
No.HINDU/DINDIGUL JOINT 1/350/2023 dated 05.07.2023 issued by  
the 2nd respondent as to quash the same as illegal on the grounds o

1/13

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fraud, coercion, misrepresentation, and forgery of Hindu Marriage Act, 1955 or Special Marriage Act, 1954.

For Petitioner : Mr.K.Navaneetharaja

For Respondents : Mr.G.V.Vairam Santhosh,  
Addl. Government Pleader for R1

Mr.A.Albert James,  
Govt. Advocate (Crl. Side) for R2

Mr.S.Kanagarajan,  
For Mr.B.Anandan for R3.

#### ORDER

Heard the learned counsel for the writ petitioner, the learned Additional Government Pleader for the respondents 1 and 2, the learned Government Advocate (Crl. Side) for the fourth respondent and the learned counsel for the third respondent.

2.The third respondent is present in person along with his counsel. I specifically asked him whether he wants to file counter affidavit. The third respondent made it clear that he does not want to file any counter affidavit and that he is not opposing the prayer made in the writ petition. He undertakes that he will not come in the way of the writ petitioner ever again in future.

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3.The writ petitioner is an engineering college student. She got acquainted with the third respondent. The impugned entry in the Marriage Register on the file of the second respondent reads that the marriage between the petitioner and the third respondent was registered. To quash the same, this writ petition has been filed.

4.The specific stand of the writ petitioner is that no marriage ever took place between her and the third respondent and that whatever happened was only on paper. This averment is not controverted by the third respondent. The rule of non-traverse will apply and I have to proceed on the premise that the writ petitioner's assertion is correct.

5.The State of Tamil Nadu enacted the Tamil Nadu Registration of Marriages Act, 2009. Section 3 of the Act mandates compulsory registration of marriages. The parties to the marriage have to prepare a Memorandum in the appropriate Form and deliver the same to the jurisdictional Marriage Registrar. It can be in person or through any other prescribed mode. Section 7 of the Act is relevant.

It reads as follows :

<https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) “7.(1) Where the Registrar, before whom the memorandum is delivered or sent under section 5 on scrutiny of the documents filed with the memorandum or, on the other facts noticed or brought to his notice, is satisfied or has reason to believe that,—

(a) the marriage between the parties is not performed in accordance with the personal laws of the parties, or any custom or usage or tradition; or

(b) the identity of the parties or the witnesses or the persons testifying the identity of the parties and the performance of the marriage is not established beyond reasonable doubt; or

(c) the documents tendered before him do not prove the marital status of the parties, he may, after hearing the parties and recording the reasons in writing, refuse to register the marriage and may,—

(i) call upon the parties to produce such further information or documents as deemed necessary, for establishing the identity of the parties and the witnesses or correctness of the information or documents presented to him, or

(ii) if deemed necessary, also refer the papers to the local police station within whose jurisdiction the parties reside, for verification.

<https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) (2) Where, on further verification as provided in sub-section (1), the Registrar is satisfied that there is no objection to register the marriage, he may register the same. If in the opinion of the Registrar, the marriage is not fit for registration, he may pass an order of refusal in writing, recording the reasons therefor.” Rule 8 of the Tamil Nadu Hindu Marriage (Registration) Rules, 1967 reads as follows :

“8.Scrutiny of application.—The Marriage Registrar shall, on receipt of the application, scrutinise it or have it scrutinized it—

(i) the application is incomplete; or

(ii) the prescribed fee has not been paid; or (ii) any of the conditions prescribed in Sections 5, 6 and 7 of the Act has not been satisfied; or

(iv) the application has not been presented within thirty days from the date of the marriage and the delay in filing the application is not condoned under Rule 5 of the Marriage Registrar shall refuse to register the marriage and pass a brief order to that effect and communicate it to the parties to the marriage :

Provided that the Marriage Registrar may return the application to the applicant by post for supplying any omission or for rectifying any defect or for clearing any doubt, and for resubmitting the application to the Marriage Registrar within fifteen days from the date of receipt of the application by the applicant with his endorsement thereon.” <https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) Rule 5(5) and 6 of the Tamil Nadu Registration of Marriages Rules, 2009 reads as follows :

“5.Procedure for Registration of Marriage.- .....

(5)On receipt of a memorandum, the Registrar shall scrutinise the same and if on scrutiny it is found that the memorandum is defective or insufficient in particulars or not accompanied with the fee or the documents required for scrutiny, he shall return the same to the parties to the marriage for rectification of the defects and resubmission of the memorandum within seven days from the date of receipt of the memorandum by the parties to the marriage.

(6) After verification of the memorandum and after being satisfied bout the identity of the parties to the marriage and witnesses, the Registrar shall file the memorandum in the File of memorandum in the format given below consisting of blank butts serially numbered:— The memorandum is filed at Serial No. .... of 20....

on page of volume ..... of the File of memorandum of marriages maintained under the Tamil Nadu Registration of Marriages Act, 2009.' Dated the ..... day of 20...

Signature Registrar of Marriages.” In the aforementioned provisions, the expression “scrutiny” is found. Oxford Advanced Learner's Dictionary defines “scrutiny” as careful and thorough examination. In Ramanatha Aiyar's Advanced Law Lexicon, <https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) the word “scrutiny” has been defined as referring to examination or search.

6.The Marriage Registrar must first satisfy himself that the papers presented before him are in order. He has to examine the material placed before him and be satisfied that marriage had been solemnised between the parties. If the parties are Hindus, the marriage may be solemnised in accordance with the customary rites and ceremonies. In the State of Tamil Nadu, Section 7(A) provides for an alternative form of marriage. The provision reads as follows :

“7A.Special provision regarding suyamariyathai and seerthiruththa marriages. - (1) This section shall apply to any marriage between any two Hindus, whether called suyamariyathai marriage or seerthiruththa marriage or by any other name, solemnized in the presence of relatives, friends or other persons -

(a) by each party to the marriage declaring in any language understood by the parties that each takes the other to be his wife or, as the case may be, her husband; or

(b) by each party to the marriage garlanding the other or putting a ring upon any finger of the other; or

(c) by the tying of the thali.” Section 7A merely dispenses with the religious ceremonies and a public solemnisation of marriage. While the presence of a priest is not <https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) necessary, the presence of friends or relatives or other persons is mandatory. The ceremony would still require either tying of Thali or putting a ring or exchange of garlands. Before the Marriage Registrar registers a marriage, he must be fully aware that a valid marriage either under Section 7 or 7A of the Hindu Marriage Act had taken place. This envisages due application of mind on his part. He will have to peruse the materials. He may have to have a look at the photographic or videographic evidence. He has to enquire the parties to the marriage as well as the persons who had witnessed the marriage. Since the statutory provision indicates plurality, the friends/relatives/other persons will have to be two or more.

7.I take judicial notice of the fact that in quite a few cases, susceptible women have been trapped into situations which they did not anticipate originally. That is why, the Division Bench of this Court in HCP Nos.2767/2013 and 2141/2014 disapproved of the marriages taking place in the secrecy of the chambers of advocates. I am conscious that this decision has been overturned by the Hon'ble Supreme Court in Ilavarasan vs. The Superintendent of Police (2023 SCC OnLine SC 1120). The Hon'ble Supreme Court took note of the fact that in the case of marriages taking place against the wishes of the <https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) elders, a public solemnization may not be possible. The decision of the Hon'ble Supreme Court cannot be understood to mean that the Registrar can dispense with the requirement of satisfying himself that a valid marriage has taken place. Section 7A also contemplates a certain form of marriage and the registrar must be satisfied that this form was undergone when such a claim is set out in the application.

8.I had already extracted Section 7 of the Tamil Nadu Registration of Marriages Act, 2009 which empowers the Registrar to refuse registration. Registration can be refused only after enquiry. The corollary is that before registering a marriage also, there has to be an enquiry as contemplated by Section 7 of the 2009 Act. Both registration as well as refusal will have to be preceded by an enquiry. It may not be possible to exhaustively draw a checklist. The Marriage Registrar will have to adopt a commonsensical approach to assure himself that there has been no coercion or fraud or undue influence played on any party to the marriage. Though marriage is a sacrament, it is also a contract. Any contract postulates free consent of the parties. The Registrar must be satisfied that the parties freely consented to and underwent the ceremonies of marriage. Just as Section 7 contemplates hearing the parties and recording the reasons in writing for refusing to register the <https://www.mhc.tn.gov.in/judis> ( Uploaded on: 15/10/2025 08:21:15 pm ) marriage, for registering the marriage also, proper reasons must be recorded in writing. This alone would show that there was application of mind on the part of the Registrar. It cannot be a mere going through of motions.

9.A learned Judge (His Lordship Mr.Justice R.Vijayakumar) of this Court in B.Sahar Banu v. The I.G of Registration (WP(MD)No.7288 of 2015) held that unless the marriage ceremonies are undergone, the marriage cannot be registered under the Act. The registering authority cannot simply rely upon the statutory forms and mechanically proceed to register the marriage. A statutory duty cast upon him to satisfy himself that the marriage ceremonies were undergone by the parties. The learned Judge had relied on the earlier decisions of this Court reported in 1995 2 L.W 95 (Shaji v. Gopinath), 2009 2 MLJ (CrI).607 (Jegadeesh Chandra Bose v. The Superintendent of Police, Kanyakumari District) and 2021 3 L.W. 820 (T.Beril Lynora v. The District Registrar (Administration), Thoothukudi). The duty to verify the factum of marriage has been cast on the registering authority. If any marriage certificate is issued without being preceded by any marriage ceremony, it is bereft of any legal consequence.

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10.The above approach has to be adopted in the case of marriages solemnized under other personal laws.

11.In the case on hand, the petitioner has averred that she was straightaway taken in a bike to the office of the Marriage Registrar and that no marriage of any sort was performed. The third respondent has not denied the said allegation set out in the affidavit filed in support of the writ petition. Since the Marriage Registrar had mechanically made the impugned registration of marriage and did not adhere to the statutory provisions, it stands quashed.

12.Since the third respondent regrets having sent several offending texts to the writ petitioner and had not opposed the writ prayer, in the interest of justice, the criminal complaint lodged by the writ petitioner shall be closed by the jurisdictional Police.

13.This writ petition stands allowed. No costs.

|          |            |
|----------|------------|
| NCC      | : Yes/No   |
| Index    | : Yes / No |
| Internet | : Yes/ No  |
| ias/SKM  |            |

Issue order copy on 16.10.2025.

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Note: The Registry is directed to suppress the names of the petitioner and the third respondent while issuing the order copy.

To:

- 1.The District Registrar,  
Dindigul, Dindigul District.
- 2.The Sub Registrar,  
Joint - I Sub - Registrar Office,  
Dindigul District.
- 3.The Inspector of Police,  
Cyber Crime Wing Criminal Branch,  
Madurai City, Madurai.

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G.R.SWAMINATHAN,

08.

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